



Chart: Alternative accommodations when telework isn't reasonable

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CHART: The Equal Employment Opportunity Commission has said that allowing an individual with a disability to work at home may be a form of reasonable accommodation. However, telework is not always feasible. Several factors should be considered in determining the feasibility of working at home, including the employer's ability to supervise the employee adequately and whether any duties require the use of certain equipment or tools that cannot be replicated at home. Other critical considerations include whether there is a need for face-to-face interaction and coordination of work with other employees; whether in-person interaction with outside colleagues, clients or customers is necessary; and whether the position in question requires the employee to have immediate access to documents or other information located only in the workplace.

The following chart provides examples of the ways an agency provided an effective alternative accommodation when the complainant requested telework.

Case name	Position and condition	Reason for denial	Alternative accommodation provided
<i>Huong A. v. Department of Veterans Affairs</i> , 125 LRP 27478 , EEOC No. 2024002431 (EEOC OFO 07/08/25).	• Advanced medical support assistant • Mental	The complainant stated that she required an accommodation due to symptoms directly related to interactions or close contact with her supervisor. The request was denied, as she was not entitled to a new supervisor as a reasonable accommodation.	The agency offered a modified work schedule to allow for breaks or a compressed work schedule to allow for a four-day workweek; liberal use of annual leave; and changing her supervisor's method of communication to written or email communication only. The complainant declined these alternatives.
<i>Leon B. v. Department of Veterans Affairs</i> , 125 LRP 27317 , EEOC No. 2024000750 (EEOC OFO 07/02/25).	• Green environmental management system program manager • Anxiety; depression; hypertension	The complainant's supervisor explained that his position was responsible for responding to environmental hazardous spills and was not appropriate for telework.	The agency granted the complainant leave on alternating weeks.
<i>Harold M. v. Social Security Administration</i> , 125 LRP 26786 , EEOC No. 2024001565 (EEOC OFO 06/26/25).	• Claims specialist • Mental; physical	The medical documentation the complainant provided to support his request made no mention of telework.	The agency provided the accommodations mentioned in the medical documentation, including that the complainant "wear an N95 mask" when around others; all persons around him be required to wear masks; and that when working in an open space, he should be provided with a

			glass shield in front of him or on both his sides.
<i>Bertie T. v. Department of Veterans Affairs</i> , 125 LRP 26310 , EEOC No. 2023004775 (EEOC OFO 06/25/25).	• Physician assistant • Sleep disorders	The agency explained that the complainant's position required her physical presence to care for patients.	The agency provided a flexible start time of up to one hour, for six months.
<i>Adah T. v. Department of Veterans Affairs, Veterans Health Administration</i> , 125 LRP 25681 , EEOC No. 2023003019 (EEOC OFO 06/10/25).	• Registered nurse care manager • Mental and physical, including urinary incontinence; post-traumatic stress disorder; panic disorder; and anxiety	The agency asserted that it provided other accommodations that were effective.	The agency provided frequent breaks, an assigned workspace in a more remote part of the office, and noise-canceling headphones.
<i>Raphael C. v. Department of Defense, Department of the Navy</i> , 125 LRP 26907 , EEOC No. 2023003733 (EEOC OFO 05/29/25).	• Distribution facilities specialist • Post-traumatic stress disorder; traumatic brain injury	The agency determined that the complainant's job involved receiving and inspecting supplies and equipment in a warehouse, with the majority of his duties done onsite.	The agency offered a reassignment and conducted a search for a vacant position, which was unsuccessful. The agency ultimately granted two days of telework, breaks, and the liberal use of leave.
<i>Jackqueline G. v. Social Security Administration</i> , 125 LRP 11409 , EEOC No. 2023003279 (EEOC OFO 03/20/25).	• Disability processing specialist • Mental and physical; post-concussive syndrome	The agency determined that the complainant did not provide supporting medical documentation that telework would permit her to perform her essential functions or control her symptoms.	The agency granted accommodations such as altered lighting in the complainant's cubicle; a change in her cubicle location for noise control, which she declined; and liberal use of leave.
<i>Elroy S. v. Social Security Administration</i> , 125 LRP 10749 , EEOC No. 2024001446 (EEOC OFO 02/10/25).	• Administrative law judge • Pulmonary, hematologic, and orthopedic medical conditions	The agency denied full-time telework because it would remove essential functions from the complainant's job duties.	Management did not explore alternative accommodations with the complainant because he indicated that no alternative but telework would be effective. The agency searched for a vacant, funded position to which he could have been reassigned, but no such position existed.
<i>Elias M. v. Department of Veterans Affairs</i> , 125 LRP 2917 , EEOC No. 2023003643 (EEOC OFO 01/08/25).	• Social work intern • Inflammatory arthritis	Under agency policy, student interns are not allowed to telework.	The agency assigned the complainant to a first-floor office, allowed him to elevate his injured foot while working, and provided mobility aids.

<i>Sadie B. v. Department of Veterans Affairs, veterans Health Administration, 125 LRP 1713, EEOC No. 2022004813 (EEOC OFO 12/17/24).</i>	• Advanced medical support assistant • Post-traumatic stress disorder; generalized anxiety disorder; panic attacks; depression; migraines; high blood pressure	The agency explained that telework would remove some of the essential functions of the complainant's position.	The agency allowed the complainant to work from an isolated desk and provided noise-canceling headphones. Later, the agency also offered a divider for the complainant's work area to block out potential distractions; an environmental sound-maker; modified break schedule; cocoon glasses for lights; and the ability for the complainant to control the amount of light in her work area.
<i>Hilton L. v. Department of Veterans Affairs, National Cemetery Administration, 125 LRP 1617, EEOC No. 2023003529 (EEOC OFO 12/10/24).</i>	• Program support assistant • Social phobia; irritable bowel syndrome	The agency stated that the medical evidence did not support granting the complainant full-time telework.	The agency offered the complainant a flexible schedule, permitting him to break his two 15-minute breaks into smaller segments, and a relocation of his workstation closer to a restroom and away from coworkers.
<i>Esteban S. v. Department of Veterans Affairs, 124 LRP 39331, EEOC No. 2023003365 (EEOC OFO 10/28/24).</i>	• General engineer • Post-traumatic stress disorder; traumatic brain injury; irritable bowel syndrome	The agency explained that full-time telework was not approved because it would require the removal of an essential function of the complainant's position.	The agency offered an office to provide a quieter environment with a nearby restroom. It also provided liberal leave and increased its effort to provide written instruction when practicable. The agency also ultimately made telework an ad hoc decision between the complainant and his supervisor.
<i>Christena H. v. Social Security Administration, 124 LRP 34693, EEOC No. 2022004495 (EEOC OFO 08/28/24).</i>	• Hearing customer service representative • Torn rotator cuff; anxiety disorder; panic disorder; post-traumatic stress disorder; depression	The agency said the complainant's medical evidence did not support a need for full-time telework.	The agency offered to provide a second laptop to alleviate the complainant's need to carry it to and from work. The agency also offered the complainant the opportunity to provide medical documentation supporting her preferred accommodation of telework, but she failed to supply the documentation.
<i>Tynisha H. v. Department of Veterans Affairs, 124 LRP 15919, EEOC No. 2023001229 (EEOC OFO 05/08/24).</i>	• Registered nurse • Dizziness; migraines	The agency explained that an essential function of the complainant's position required in-person work.	The agency reassigned the complainant to a position where full-time telework was permitted.

<i>Tad S. v. Department of Veterans Affairs, 124 LRP 5565, EEOC No. 2022004792 (EEOC OFO 02/05/24).</i>	• Radiologist • Mental	The essential duties of the complainant's position required his presence at the agency's facility. His duties included performing clinical oversight and supervision of IV contrast administration.	The agency offered the complainant a new office location with less noise and distractions and a white noise machine.
<i>Clarine L. v. Department of Defense, Defense Health Agency, 124 LRP 2003, EEOC Nos. 2022003811, 2023004452 (EEOC OFO 01/03/24).</i>	• Health systems specialist • Post-traumatic stress disorder; hypervigilance; migraines; vitiligo; nausea; depression; kidney disease; blood pressure; heart disease	The complainant had performance issues while previously teleworking.	The agency offered a private office, signs posted about noise, a white noise machine, noise-canceling headphones, ear plugs, and advanced sick leave.
<i>Milton D. v. Department of Veterans Affairs, 124 LRP 781, EEOC No. 2022004091 (EEOC OFO 12/19/23).</i>	• Registered nurse • Chronic lower back pain; chronic fatigue syndrome; intervertebral disc syndrome	A supervisor determined that the essential functions of the complainant's position required in-person work including administering injections, triaging walk-ins, and observing patients.	The agency offered alternative accommodations including liberal leave, an extended hours tour, a workplace interior design assessment, ergonomic workspace equipment, a white noise maker, and noise-canceling headphones. The complainant ultimately accepted the agency's offered reassignment to a virtual nurse position.
<i>Brendon L. v. Department of Veterans Affairs, Veterans Benefits Administration, 123 LRP 36613, EEOC No. 2023003238 (EEOC OFO 11/28/23).</i>	• Management analyst • Arthritis	The agency explained that the complainant needed to be closely supervised in his management position as he was not fully performing his duties after eight months in the position.	The agency provided flexible hours and compressed work schedule.
<i>Arlette W. v. Department of Veterans Affairs, 123 LRP 31864, EEOC No. 2022005174 (EEOC OFO 10/11/23).</i>	• Purchasing agent • Major depressive disorder; anxiety; military sexual trauma; migraines	The agency explained that the complainant's position was not suitable for telework because the essential functions required significant in-person interaction.	The agency offered the complainant a schedule modification as an alternate accommodation.
<i>Chauncey M. v. Central Intelligence Agency, 123 LRP 31535, EEOC No. 2022002343 (EEOC OFO 10/04/23).</i>	• Chief staff officer • Associational, based on infant child with health conditions	The agency articulated a reasonable hardship caused by the complainant's teleworking and taking extended leave in that his work schedule was not conducive to meeting daily	Once the complainant returned to working in the office, he was reassigned.

		deadlines and that he was not present to supervise employees who were working in the office.	
<i>Alice L. v. Department of Veterans Affairs, 123 LRP 24257, EEOC No. 2022002463 (EEOC OFO 07/24/23).</i>	• Logistics management specialist • Post-traumatic stress disorder	The essential functions of the complainant's position required that she be on-site.	The agency offered noise-canceling headphones, a private office, and access to the Employee Assistance Program.
<i>Tiffanie S. v. Department of Health and Human Services, Centers for Medicare and Medicaid Services, 123 LRP 12700, EEOC No. 2022001592 (EEOC OFO 04/03/23).</i>	• Nurse consultant • Knee injury	Telework could not have been an effective accommodation because the complainant demonstrated that she could not work independently from home.	The agency allowed the complainant to use underground parking, and she could use escalators and elevators at train and subway stations.
<i>Gwen O. v. Department of Veterans Affairs, 123 LRP 12542, EEOC No. 2022000155 (EEOC OFO 03/30/23).</i>	• Clinical pharmacist • Narcolepsy; cataplexy	The agency explained that telework was not possible for the complainant's position, as the essential functions of the job could not be performed via telework.	As alternatives, the agency offered a sit/stand desk, anti-fatigue mat, sun lamp, nap location, 30 minutes of extra time added to her lunch, flexible hours, a space heater, noise-canceling headphones, and use of sick or FMLA leave.
<i>Melissia M. v. Department of Veterans Affairs, Veterans Health Administration, 122 LRP 47504, EEOC No. 2022000591 (EEOC OFO 11/28/22).</i>	• Advanced medical support assistant • Irritable bowel syndrome; attention deficit hyperactivity disorder	The agency stated that it addressed the precise accommodations brought about by the complainant's medical provider.	The agency ordered a solid door for the complainant's private office, required all staff to call her before entering her office, and provided her a private bathroom.
<i>Marti F. v. Department of Veterans Affairs, 122 LRP 43713, EEOC No. 2021003694 (EEOC OFO 10/17/22).</i>	• Advanced medical support assistant • Polycystic disease, which progressed to renal failure	The supervisor said the essential functions of the complainant's job could not be completed with 100 percent telework.	The agency provided 50 percent telework. The agency also provided protective equipment, excused the complainant from screening duties, and offered alternative positions with no public contact, which she declined.
<i>Shenika B. v. Department of Veterans Affairs, National Cemetery Administration, 122 LRP 28651, EEOC No. 2021004485</i>	• Program support assistant • Mental	The agency said that burial documents were not accessible virtually and she needed to attend direct internments when no other cemetery representative was available.	The complainant's supervisor offered an alternative that she would not be listed as cemetery representative during the daily schedule but if there is no representative available, she would be

(EEOC OFO 08/17/22).			required to attend to the direct internments.
<i>Shaun N. v. Department of the Treasury, Internal Revenue Service, 122 LRP 6762, EEOC No. 2021000331 (EEOC OFO 02/10/22).</i>	• Management assistant • Post-traumatic stress disorder; anxiety	The agency explained that the essential duties of the assistant's position were not suited to telework.	Management offered the complainant an alternative schedule, which included a later start time so he could commute to work outside of rush hour, but he declined the offer.
<i>Shad R. v. Department of Veterans Affairs, 120 LRP 25684, EEOC No. 2019003139 (EEOC OFO 08/12/20).</i>	• Information technology specialist • Right knee; right ankle; back	The supervisor denied the complainant's request to telework because his performance had been subpar.	The supervisor offered to facilitate the complainant using a van pool and having a flexible schedule and flexible leave.
<i>Karolyn E. v. Department of Veterans Affairs, 120 LRP 25666, EEOC No. 2019002890 (EEOC OFO 08/04/20).</i>	• Supervisory veterans service representative • Metatarsalgia; bursitis; chronic neuroma-type pain of both feet	The agency stated that the coach and assistant coach positions the complainant held were not suitable for telework as she managed others and in-person mentoring/training were part of the positions.	The agency reassigned the complainant to positions that were suitable for full-time telework.
<i>Elvis G. v. Small Business Administration, 120 LRP 20796, EEOC No. 2019000968 (EEOC OFO 06/30/20).</i>	• Public affairs specialist • Degenerative joint disease; bipolar disorder	The supervisor said that the complainant was needed in the office due to his roles as her speech writer and the regional communications director, and the information needed to perform these roles was located at the office. The supervisor also said that the complainant had to be present in the office to field press inquiries and prepare press responses.	Although the complainant sought three days per week of telework, the agency offered one day of telework per week, transportation to attend media events, accommodation for travel work assignments, and a wheelchair upon request or other assistive mobility devices.
<i>Ying B. v. U.S. Postal Service, 120 LRP 18479, EEOC No. 2019005781 (EEOC OFO 05/28/20).</i>	• Disability compliance specialist • Asthma	The reasonable accommodation committee was evaluating the request, and the agency offered the complainant an interim temporary accommodation.	The complainant's supervisor offered her a reassignment to another post office as an interim temporary accommodation while the reasonable accommodation committee was reviewing her request for telework five days per week. This accommodation was one of the two recommendations suggested by the complainant's physician.
<i>Ralph B. v. Department of</i>	• Intelligence research specialist	The complainant's supervisor said he could not telework	The agency assigned the complainant to work in an

<i>Homeland Security, Immigration and Customs Enforcement</i> , 120 LRP 5239 , EEOC No. 0120182433 (EEOC OFO 01/23/20).	• Asthma; allergies to iodine, dust, and toxins	because his position required researching sensitive, confidential, and classified information that could only be accessed from a secure facility and because the group was located with criminal investigators and senior management officials to facilitate analysis.	annex building.
<i>Enola L. v. National Aeronautics and Space Administration</i> , 119 LRP 47779 , EEOC No. 2019002113 (EEOC OFO 11/27/19).	• Program analyst • Post-traumatic degenerative arthritis; chronic renal failure; deep vein thrombosis	The supervisor explained that the complainant's position required that she attend meetings, her position could not be effectively performed while on full-time telework, and her physician specifically recommended that she telework two days per week.	The agency allowed the complainant to work an alternative schedule and to telework two days per week.
<i>Lashonda M. v. General Services Administration</i> , 119 LRP 45011 , EEOC No. 0120182690 (EEOC OFO 11/06/19).	• Contract specialist • Vertigo	The complainant requested four days of telework per week as a reasonable accommodation, and she received a trial accommodation of three days of telework per week. The complainant's supervisor stated that the interim accommodation was not working well and that two days of telework was a better option given the complainant's performance concerns, excessive leave, and learning and training needs.	The agency offered two days of telework per week and said the complainant could take leave when her condition prevented her from fulfilling her work schedule.
<i>Leah R. v. Department of Health and Human Services, National Institutes of Health</i> , 119 LRP 45040 , EEOC No. 0120182781 (EEOC OFO 11/05/19).	• Contract specialist • Adjustment reaction with anxiety and depression	The supervisor said that she needed the complainant back in the office for the fourth quarter of the fiscal year for in-person interactions.	The complainant developed anxiety following domestic abuse by her husband, who was an agency contractor. The supervisor said that the agency would put security mechanisms in place to prevent the husband's access to the building and limit individual access to the complainant's work site.
<i>Amie H. v. Department of Veterans Affairs</i> , 119 LRP 45158 , EEOC No. 2019001599 (EEOC OFO 10/31/19).	• Contract specialist • Post-traumatic stress disorder; irritable bowel syndrome	The agency stated that the alternatives offered would allow the employee to better manage the noise environment and would allow her to perform the essential duties of her job.	The agency offered several alternatives, including a private office, allowing her to keep her door closed and post a do not disturb notice on the door, a changed tour of duty, access to a private restroom, and a white noise generator.

<i>Larraine S. v. Department of Agriculture, Natural Resources Conservation Service, 119 LRP 32637, EEOC No. 0120180647 (EEOC OFO 08/15/19).</i>	• Office assistant • Generalized anxiety disorder; panic disorder with agoraphobia	The position description for the office assistant job indicated that the complainant was required to have regular personal contact with agency employees, other government agencies, the public, and commercial suppliers and vendors.	The EEOC found it was reasonable for management to ask her to perform in the new position for 30 to 90 days before her request for telework was considered.
<i>Rosie T. v. Department of Veterans Affairs, 119 LRP 30108, EEOC No. 0120181212 (EEOC OFO 07/25/19).</i>	• Contract specialist • Chronic post-traumatic stress disorder; severe bereavement; depression; sleep apnea; spinal osteoarthritis	Based on the medical evidence, the agency found that alternative accommodations would have been effective.	Agency offered alternative accommodations, including liberal leave for a period of six months including use of Family and Medical Leave Act leave, telework on a less than full-time basis, and a private office.
<i>Sherrill S. v. Department of Defense, Department of the Air Force, 119 LRP 28375 (EEOC OFO 07/16/19).</i>	• Production management control specialist • fatigue and muscular and skeletal complications to neck and arm; adjustment disorder with anxiety	The complainant's medical documentation did not state why the breaks and rest had to be done at home and could not be done in the workplace as an accommodation.	The agency offered breaks and a rest period which her medical documentation stated she needed.

Resources on **cyberFEDS®**:

- [Quick Start Guide: Disability Discrimination -- The Basics](#)
- [Quick Start Guide: Reasonable Accommodation -- Disability -- The Basics](#)
- [Quick Start Guide: Reasonable Accommodation -- Disability -- Telework](#)

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